

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: _____

Date Purchased: _____

-----X
DENNIS PENDER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, THE NEW YORK CITY
POLICE DEPARTMENT OF THE CITY OF NEW
YORK, POLICE OFFICER "ANDREW HO" AND
POLICE OFFICERS "JOHN DOES",

Defendants.
-----X**SUMMONS**

Plaintiff designates KINGS
County as the place of trial.

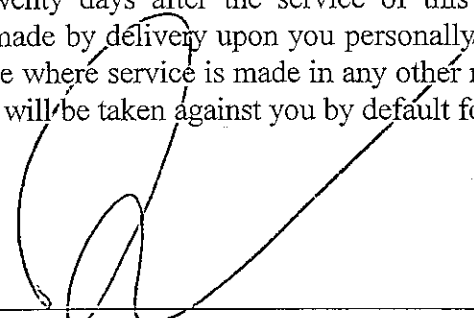
The basis of venue is:
Place of Occurrence

Plaintiff resides at:
55 LaSalle Street
Apt. 12K
New York, NY 10027
County of New York

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 3, 2014



JAY H. TANENBAUM, Attorney
LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street - Suite 5F
New York, New York 10005
(212) 422-1765
Our File # 555-13J-0007

TO:
NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10038

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

POLICE OFFICER ANDREW HO
SHIELD #11741

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DENNIS PENDER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, THE NEW YORK CITY
POLICE DEPARTMENT OF THE CITY OF NEW
YORK, POLICE OFFICER "ANDREW HO" AND
POLICE OFFICERS "JOHN DOES",

Defendants.
-----X

**VERIFIED
COMPLAINT**

Index No.: _____
Date Purchased; _____

Plaintiff, by his attorneys, **LAW OFFICES OF JAY H. TANENBAUM**, complaining of the Defendants, respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That, at all times hereinafter mentioned and on October 10, 2013, the plaintiff, **DENNIS PENDER**, was and still is a resident of the County of New York, City and State of New York.
2. That, at all times hereinafter mentioned and on October 10, 2013 the defendant, **THE CITY OF NEW YORK**, was and still is a domestic municipal corporation, duly organized was and still is a resident of the City and State of New York.
3. That, at all times hereinafter mentioned and on October 10, 2013 the defendant, **THE NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK**, was and still is a domestic municipal corporation, duly organized was and still is a resident of the City and State of New York.
4. That on October 21, 2013, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and the place where the injuries and damages were

sustained, together with Plaintiff's demands for adjustment thereof was duly served on the Plaintiffs' behalf on the Comptroller of the City of New York and that, thereafter, said Comptroller for **THE CITY OF NEW YORK** refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.

5. That on December 30, 2013, pursuant to General Municipal Law Section 50(h), a hearing was held at the Office of the Comptroller or at the office of a designated agent.

6. That the action has been commenced within 1 year and 90 days of the date of accrual.

7. That, on October 10, 2013, the plaintiff, **DENNIS PENDER**, was assaulted and falsely arrested by the defendant, and/or defendants by and through their agents, servants and/or employees.

8. That, the plaintiff, **DENNIS PENDER**, was assaulted and falsely arrested without justification and without cause and without excuse.

9. That, the assault, battery and false arrest took place at 165 Hart Street in the County of Kings, City and State of New York, wherein the plaintiff, **DENNIS PENDER** was assaulted and held against his will by the defendant and/or defendants, their agents, servants and/or employees.

10. That, at all times hereinafter mentioned and on October 10, 2013, and for sometime thereafter, defendant, **POLICE OFFICER ANDREW HO**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a new York City Police Officers, and was employed by the defendant, **THE CITY OF NEW YORK**.

11. That, at all times hereinafter mentioned and on October 10, 2013, and for sometime thereafter, defendant, **POLICE OFFICER ANDREW HO**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officers, and was employed by the defendant, **THE NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK**.

12. That, the aforementioned assault and false arrest of the plaintiff, **DENNIS PENDER**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants.

13. That, by reason of the foregoing, the plaintiff, **DENNIS PENDER**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

14. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. That, by reason of the foregoing, the plaintiff, **DENNIS PENDER**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

16. That the plaintiff, **DENNIS PENDER**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 15 with the same force and effect as if hereinafter more fully set forth at length herein.

17. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY OF NEW YORK**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY OF NEW YORK**.

18. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK**, were committed due to the negligence, recklessness and carelessness of the aforementioned

police officers, agents, servants and/or other employees of the defendant, **THE NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK**,

19. That the defendant, **THE CITY OF NEW YORK**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY OF NEW YORK**.

20. That the defendant, **THE NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK**.

21. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **POLICE OFFICER ANDREW HO**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY OF NEW YORK**.

22. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **POLICE OFFICER DENNIS PENDER**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK**.

23. That, the defendant, **THE CITY OF NEW YORK**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **POLICE OFFICER ANDREW HO**, who was employed by the defendant, **THE CITY OF NEW YORK**.

24. That, the defendant, **THE NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and

negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **POLICE OFFICER ANDREW HO**, who was employed by the defendant, **THE NEW YORK CITY POLICE DEPARTMENT OF THE CITY OF NEW YORK**.

25. That, by reason of the foregoing, the plaintiff, **DENNIS PENDER**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

26. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

27. That, by reason of the foregoing, the plaintiff, **DENNIS PENDER**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

28. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 27 with the same force and effect as if same were set forth herein more fully at length.

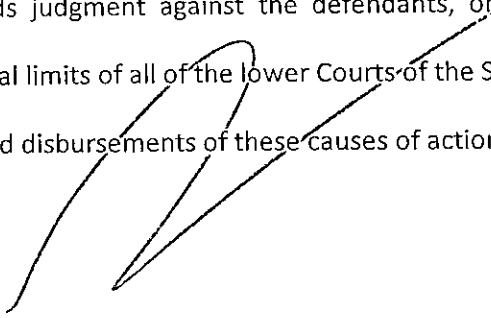
29. That at all the times hereinafter mentioned, there were in full force and effect, Sections 1981 through 1988 of Title 42 of the U.S. Code.

30. That at all the times hereinafter mentioned, defendants, their agents, servants and/or employees, violated the aforescribed Title 42 of the U.S. Code Section 1981 through 1988, and did violate the plaintiff's Civil Rights.

31. That, by reason of the foregoing, the plaintiff, **DENNIS PENDER**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **DENNIS PENDER**, demands judgment against the defendants, on all causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs and disbursements of these causes of action.

Dated: New York, New York
January 3, 2014



LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street, Suite 5F
New York, New York 10005
(212) 422-1765
File No.: 555-13J-0101

ATTORNEY'S VERIFICATION

The undersigned, an attorney, admitted to practice in the Courts of the State of New York, shows:

That deponent is the attorney of record for the plaintiff(s) in the within action; that deponent has read the foregoing complaint, bill of particulars, and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief; and that as to those matters, deponent believes that to be true. Deponent further says that the reason this verification is made by deponent and not by plaintiff(s) is that plaintiff(s) reside(s) in a county other than that in which deponent maintains his offices.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which he has made or has caused to be made concerning the subject matter of this action, and statements of parties and/or witnesses made herein.

The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York

Signed/

Jay H. Tanenbaum
JAY H. TANENBAUM

INDIVIDUAL VERIFICATION

STATE OF NEW YORK, COUNTY OF

)SS

Being duly sworn, deposes and says:

That deponent is the plaintiff(s) in the within action; that deponent has read the foregoing complaint, bill of particulars, and knows the contents thereof; that the same is true except as to those matters therein stated to be alleged upon information and belief, and as to those matters, deponent believes it to be true.

Signed/

Jay H. Tanenbaum

Sworn to before me this

3rd

day of January, 2014
JAY H. TANENBAUM
Notary Public, State of New York
No. 02TA5028657
Qualified in New York County
Commission Expires June 6, 2014

No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DENNIS PENDER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, THE NEW YORK CITY
POLICE DEPARTMENT OF THE CITY OF NEW
YORK, POLICE OFFICER "ANDREW HO" AND
POLICE OFFICERS "JOHN DOES",

Defendants.

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF JAY H. TANENBAUM

Attorney for Plaintiff

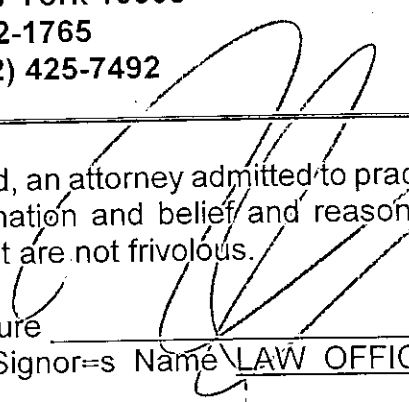
14 Wall Street - Suite 5F
New York, New York 10005

(212) 422-1765

Fax No.: (212) 425-7492

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of New York State, certified that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: January 3, 2014

Signature 

Print Signor=s Name LAW OFFICES OF JAY H.

TANENBAUM